

INTERACTIVE WORKBOOK

The IP Vault

Your Step-by-Step Guide to Protecting Your
Business, Brand, and Creative Assets

START YOUR PROTECTION JOURNEY

INCLUDES:

- ✓ Fillable action checklists
- ✓ Customizable tracking sheets
- ✓ Timeline planning tools
- ✓ Decision-making worksheets



Your Protection Roadmap

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Brand Audit & Trademark Search

Your Brand Information

BRAND NAME	WEBSITE URL
Enter your brand name	www.yourbrand.com
YOUR NAME / COMPANY	DATE OF FIRST USE
Full legal name	Month/Year
INDUSTRY / NICHE	ANNUAL REVENUE (APPROX)
e.g., Marketing Consulting	e.g., \$85,000

USPTO TESS Search Checklist

☐ Searched exact brand name: tess2.uspto.gov
☐ Searched similar sounding names: phonetically similar
☐ Searched common misspellings: typos that could conflict
☐ Checked same Nice Class: your industry category
☐ Checked related classes: similar goods/services

Nice Classification Quick Reference:
Class 35 = Business Services | Class 41 = Courses/Training | Class 42 = Tech/SaaS
Class 9 = Apps/Software | Class 25 = Clothing | Class 14 = Jewelry

Search Results

Conflicting Mark	Class	Goods/Services	Risk Level
The IP Vault - Interactive Protection Workbook			Step 3: Search Results

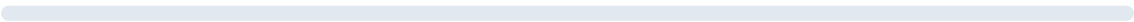
Conflicting Mark	Class	Goods/Services	Risk Level

Your Classification Decision

SELECT YOUR NICE CLASS(ES)

Class #	Description	Select	Estimated Cost
35	Advertising; Business Management	☐	\$250
41	Education; Training; Online Courses	☐	\$250
42	Software as a Service; Technology	☐	\$250
9	Mobile Apps; Software Downloads	☐	\$250
25	Clothing; Apparel; Merchandise	☐	\$250
14	Jewelry; Watches; Precious Metals	☐	\$250

TOTAL CLASSES SELECTED: _____ × \$250 = \$ _____



Filing Decision

\$250
TEAS Plus / class

\$350
TEAS Standard / class

8-12
Months to register

10
Years protection

MY FILING CHOICE

☐ TEAS Plus (\$250/class) - Recommended

☐ TEAS Standard (\$350/class)

Specimen Preparation

☐ Product labels/hang tags with brand name

☐ Website screenshot showing brand in commerce

Other: _____

STEP 2

Copyright Registration Strategy

Your Copyrightable Works

Work Title	Type	Status	Register?
Course name	Video Course v	Published v	☐
	Video Course v	Published v	☐
	Video Course v	Published v	☐
	Video Course v	Published v	☐

Group Registration Decision

For Video Courses

Register ALL videos together as ONE group for \$65. Requirements: same author, same basic nature, collected together.

For Photos

Register up to 750 photos in ONE group for \$65. Great for photographers, stock image creators.

MY COPYRIGHT REGISTRATION PLAN

Registration Type	Quantity	Fee Each	Total
Single Work		\$65	\$
Video Group		\$65	\$
Photo Group		\$65	\$
TOTAL			\$

Why Registration Matters

\$0 Statutory damages WITHOUT registration	\$150K Per work WITH registration	0 Attorney fees WITHOUT registration	100% Recoverable WITH registration
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Copyright Office Filing Guide

- 1

Go to copyright.gov/registration
Click "Log in to the eCO Portal" to start your application
- 2

Select your work type
Literary for books/workbooks | Performing Arts for videos | Sound Recording for audio
- 3

Complete application fields
Title, author, claimant, publication date, deposit material
- 4

Upload your deposit
Complete PDF for literary works | One video for groups | High-res images
- 5

Pay \$65 and submit
Credit card accepted | Instant confirmation | 3-6 month processing

My Registration Tracking

Title	App #	Filing Date	Received Date	Certificate #

STEP 3

LLC Formation Checklist

Your LLC Information

LLC NAME

Your LLC Name LLC

FORMATION DATE

MM/DD/YYYY

FORMATION STATE

Select state...



REGISTERED AGENT

Agent name or service

Formation Checklist

- ☐ **Name search completed** - Searched state database
- ☐ **Domain available** - Checked domain registrar
- ☐ **Social media handles** - Instagram, Facebook, TikTok checked
- ☐ **Registered agent selected** - Have agent info
- ☐ **Articles of Organization filed** - State filing submitted
- ☐ **Filing fee paid** - Amount: \$_____
- ☐ **Certificate received** - Downloaded filed copy
- ☐ **Operating Agreement created** - Signed and dated
- ☐ **EIN obtained** - IRS.gov/ein application
- ☐ **Bank account opened** - Business account funded

Formation Costs

State	Filing Fee	Registered Agent	Total Est.
Delaware	\$90	\$199/year	\$289+
California	\$70	\$70/year	\$140+
Texas	\$300	Often included	\$300+
New York	\$200	\$100/year	\$300+
Wyoming	\$100	\$49/year	\$149+

My Total Investment

Item	Amount
State filing fee	\$ _____
Registered agent (1 year)	\$ _____
Name reservation (optional)	\$ _____
Expedited processing (optional)	\$ _____
TOTAL FORMATION COST	\$ _____

Annual Compliance Reminder

Mark your calendar:

☐ State annual report due: _____

☐ Registered agent renewal: _____

☐ Estimated annual cost: \$ _____

Operating Agreement Key Points

MEMBERS & OWNERSHIP

Member 1: 100%

MANAGEMENT STYLE

Select...

CAPITAL CONTRIBUTION

DISTRIBUTION PROPORTION

\$ Amount

100%

Delaware C-Corp Setup (If Seeking VC)

Is C-Corp Right for You?

Choose C-Corp if:

- Seeking venture capital or angel investment
- Planning to IPO or be acquired
- Have multiple co-founders with equity
- Need to issue stock options to employees
- Building a high-growth tech company

MY SITUATION

☐

Yes, pursuing VC

☐

Maybe in future

☐

LLC is fine for now

Formation Checklist

- ☐ **Delaware name search** - corp.delaware.gov
- ☐ **Registered agent selected** - Delaware agent
- ☐ **Certificate of Incorporation filed** - \$89 filing fee
- ☐ **Received certified copy** - Official document
- ☐ **First board meeting held** - Via consent or video
- ☐ **Bylaws adopted** - Corporate governance
- ☐ **Officers appointed** - CEO, CFO, Secretary
- ☐ **Founder stock issued** - Stock purchase agreements
- ☐ **IP assigned to company** - Assignment agreements
- ☐ **83(b) elections filed** - Within 30 days!

My Cap Table

Founder/Investor	Shares	Percentage	Vesting
Founder 1	4,000,000	40%	4 years / 1 year cliff
Founder 2	4,000,000	40%	4 years / 1 year cliff
Option Pool	2,000,000	20%	As issued
TOTAL	10,000,000	100%	

Key Documents Checklist

☐ Certificate of Incorporation (certified)

☐ Delaware Certificate of Good Standing

☐ Bylaws

☐ Founder Stock Purchase Agreements

☐ IP Assignment Agreements

☐ Board Consent Resolutions

☐ 83(b) Election filings with IRS

☐ SAFE document(s) (if investors)

Total Investment

Item	Amount
Delaware filing	\$89
Registered agent (1 year)	\$199
California foreign qualification (if applicable)	\$100
Legal document prep (if using attorney)	\$ _____
TOTAL	\$ _____

Ongoing Protection Calendar

Annual Compliance Checklist

- ☐ **Filing annual report** - Check state due date
- ☐ **Pay registered agent renewal** - Don't let this lapse!
- ☐ **Update registered agent if changed** - Legal requirement
- ☐ **Review and update Operating Agreement/Bylaws** - If circumstances changed
- ☐ **Verify business licenses are current** - Local requirements

Quarterly Monitoring

Quarter	Trademark Watch	Copyright Check	Other Actions
Q1 (Jan-Mar)	Search for similar marks	New works to register?	Annual report due
Q2 (Apr-Jun)	Check competitor filings	Update registrations	Budget for renewals
Q3 (Jul-Sep)	Enforcement actions	Monitor for piracy	Document reviews
Q4 (Oct-Dec)	Year-end audit	Planning for next year	Compliance check

Critical Deadlines

- Years 5-6 (of registration)**
Trademark Section 8 Declaration
 Must file to maintain registration. Miss = cancellation.
- Year 10**
Trademark Renewal
 Every 10 years. Mark your calendar 1 year early.
- Every year**
LLC/Corp Annual Reports
 Set reminder 60 days before due. Late fees can be \$50+.

My Protection Calendar

TRADEMARK DEADLINES

Mark	Registration Date	Section 8 Due	Renewal Date

ENTITY COMPLIANCE DEADLINES

Entity	Type	Annual Report Due	Registered Agent Renewal
	LLC / C-Corp		

COPYRIGHT REGISTRATION CALENDAR

Work Title	Registration #	Date Registered	Next Registration
			N/A (perpetual)

Enforcement Tracker

Date	Infringement Type	Action Taken	Outcome

30-Day Protection Sprint

Week 1: Foundation

- 1 Complete USPTO TESS trademark search**
Go to tess2.uspto.gov and search your brand name + variations
- 2 Identify your Nice Classification(s)**
Choose classes that cover your current and future offerings
- 3 Decide: LLC or C-Corp?**
If VC funding possible, do Delaware C-Corp from day one

Week 2: Filing

- 4 File trademark application**
TEAS Plus (\$250/class) at teas.uspto.gov
- 5 File entity formation**
Submit Articles of Organization (LLC) or Certificate of Incorporation (C-Corp)
- 6 Select and pay registered agent**
Essential for maintaining your entity

Week 3: Documentation

- 7 Create Operating Agreement or Bylaws**
Critical for liability protection and governance
- 8 File copyright registrations**
copyright.gov/registration - \$65 per registration
- 9 Apply for EIN**
Free at [IRS.gov/ein](https://irs.gov/ein) - needed for bank account

Week 4: Setup

- 10 Open business bank account**
Separate from personal - critical for liability protection
- 11 Set up compliance calendar**
Annual reports, trademark deadlines, renewals
- 12 Document everything**
Save all certificates, confirmations, and filings

Your Protection Summary

\$ _____ Trademark Investment	\$ _____ Entity Formation	\$ _____ Copyright Registration	\$ _____ Total Investment
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Key Documents Secured

☐ Trademark application filed (App #: _____)	
☐ Entity formed (Name: _____)	
☐ Operating Agreement/Bylaws created	
☐ EIN obtained (#: _____)	
☐ Business bank account opened	
☐ Copyright registrations (Count: ____)	

Next Steps & Notes

Remember: Protection is ongoing. Set your calendar reminders now so you never miss a deadline. The cost of protection is always less than the cost of infringement.

QUESTIONS?

Refer to the complete guides in your package:
Case Studies, Templates, Cheatsheets, and Swipe Files